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Case Name: *Muhammad Khan v. Bay Area Criminal Lawyers, PC, et al.*

Case No.: 23CV413334

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Muhammad Khan moves under Code of Civil Procedure Sections 473 and 576 for leave to file a First Amended Complaint (“FAC”). Notice of Motion (the “Motion”) at pp. 1-2 (filed: Dec. 8, 2025).

The Motion came on for hearing on July 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

On March 30, 2023, Plaintiff Muhammad Khan (“Plaintiff”), initiated this action by filing his Complaint against defendants Bay Area Criminal Lawyers, PC, Alexander Guilmartin (“Guilmartin”), and David Cohen (“Cohen”) (collectively, “Defendants”). Plaintiff brings causes of action for conversion, fraudulent deceit, breach of contract, fraud/intentional misrepresentation, false promise, concealment, unfair business competition, and negligence.

Defendants Cohen and Guilmartin filed demurrers and motions to strike the pleading. On that demurrer and motion to strike, on September 19, 2024 this Court (Hon. Amber Rosen) issued an order after hearing and ruled as follows:

Guilmartin’s demurrer as to the first, seventh and eighth causes of action on the ground of failure to state a claim is **SUSTAINED** without leave to amend. Defendant Guilmartin’s demurrer as to the second, fourth, fifth and sixth causes of action on the ground of failure to state a claim is **SUSTAINED** with 20 days leave to amend. The demurrer as to the third cause of action for breach of contract is **OVERRULED**.

[...]

[T]his Court similarly **SUSTAINS with 20 days leave to amend** Cohen’s demurrer as to the **second, fourth, fifth, and sixth causes of action** on the ground of failure to state a claim.

(Court’s September 19, 2024 Order at 5:13-15 [emphasis in original].) (filed: Sept. 19., 2024).

The Court ruled that the motions to strike were moot because the Court granted leave to amend. (*Id.* at 6:12).

While the Court in its September 19, 2024 Order gave Plaintiff 20 days leave to amend, Plaintiff failed to file an amended complaint within 20 days.

Next, on November 14, 2024, Plaintiff filed a motion for an extension of time to file an amended complaint. On December 17, 2024, Plaintiff filed a “proposed” first amended complaint (“FAC”).

On April 9, 2025, this Court (Hon. Nishigaya) heard Plaintiff’s motion for extension of time to file an amended complaint. But Plaintiff did not appear, there was no proof of service of the motion on file, and the motion was ordered off calendar. (See April 9, 2025 Minute Order.)

On December 8, 2025, Plaintiff filed a motion for leave to amend currently before the Court (Hon. Parrett). Defendants oppose the motion. For the reasons stated below, the motion is DENIED.

II. Legal Standard

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . .” (Code Civ. Proc., § 473, subd. (a)(1); see also *Bedolla v. Logan & Frazer* (1975) 52 Cal.App.3d 118, 135-136 “[T]he trial court has wide discretion in allowing the amendment of any pleading”].) Indeed, “[i]f the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Super. Ct.* (1959) 172 Cal.App.2d 527, 530.)

But if the party seeking amendment has been dilatory and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (See *Hirsa v. Sup. Ct.* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence or added costs of preparation, increased burden of discovery, etc. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

In the context of a summary judgment motion—which the Court finds to be analogous here given the old age and long docket of this case filed in March 2023—an “unreasonable delay” is typically found when a party seeks to amend after a summary judgment motion has been filed, without a valid explanation for the delay, and when the amendment is based on facts previously known to the party. (*Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 218, 224 (*Champlin*); see also *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal. App. 4th 1263, 1280 (*Falcon*).) In *Champlin*, *supra*, 92 Cal.App.5th at p. 224, the court found unreasonable delay where the plaintiff sought to amend the complaint after the defendant moved for summary judgment, despite the plaintiff having prior knowledge of the facts supporting the amendment. (*Ibid.*) The court emphasized that allowing such amendments would undermine the purpose of summary judgment by creating a “moving target.” (*Ibid.*)

III. Plaintiff's Request for Judicial Notice

In his motion, Plaintiff requests the Court take judicial notice of the record in this matter including motions and pleadings filed. The request is improper as it was not filed separately from the motion. Yet even if the request were procedurally proper, the Court finds it unnecessary and unhelpful to take judicial notice of entire record in this matter. And because it would be unnecessary and unhelpful to decide this Motion for the Court to take judicial notice of the entire record, Plaintiff's Request for Judicial Notice of the entire record is DENIED. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [declining to take judicial notice of materials not "necessary, helpful, or relevant"].)

IV. Analysis of Plaintiff's Motion

Plaintiff seeks to file a first amended complaint, asserting that at an August 15, 2025 hearing the Court (Hon. Hayashi) asked about the proposed FAC and asked Defendants "to file in or resolve matter within 60 days." (Motion for Leave, p. 1.) The minute order does not indicate that it was regarding a request for leave to amend. (See August 15, 2025 Minute Order.) Plaintiff further states that he has already filed an FAC along with a motion to file the FAC. (Motion for Leave, p. 1.) The remainder of Plaintiff's motion addresses the timeline of his case and procedural process.

In Opposition, Defendants assert the following: 1) the amended pleading exceeds the leave granted to file within 20 days of September 19, 2024 by the Court; 2) Plaintiff's conduct has been dilatory; 3) allegations in the amended pleading should have been in the complaint; and 4) the amended pleading exceeds the scope of leave requested in Plaintiff's motion.

As an initial matter, Plaintiff has not complied with California Rules of Court, rule 3.1324, which requires, in relevant part: a copy of the proposed amendment, serially numbered to differentiate from previous pleadings or amendments; including proposed allegations, where, by page, paragraph, and line number those allegations will be located; and a declaration that specifies the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason why the request for amendment was not made earlier. (See Cal. Rules of Court, rule 3.1324(a)-(b).) In all of these respects, the Motion is deficient and could be denied on that ground alone.

Moreover, since the initial filing of his pleading, Plaintiff was given the opportunity to amend his pleading after the Court's order on demurrers but failed to file timely. He further delayed requesting an extension to file an amended pleading, doing so after the twenty days leave to amend passed. Further, despite requesting the extension to file the amended pleading, failed to appear at the hearing on that motion.

Last but not least, Plaintiff waited over a year to request leave to amend after the order on demurrer, despite filing several documents since the Court's ruling. (See *Hirsa v. Superior Ct.* (1981) 118 Cal.App.3d 486, 490 [court has discretion to deny leave to amend where party has been dilatory and the delay has prejudiced the opposing party].) This point bears emphasis. The Court in its **September 19, 2024** Order expressly gave Plaintiff **20 days from that date** to file an amended complaint to try to address the pleading deficiencies that the Court carefully identified in its ruling on the demurrer, yet here Plaintiff waited for well over a year

until **December 8, 2025** to file this Motion for an extension of time. Plaintiff cannot delay, dither, and stall for such an unreasonably long period of time before seeking to file an amended pleading and then expect Court to exercise its discretion to allow Plaintiff to do so now. That's not fair, would thwart the efficient administration of our civil justice system, and would only serve at this point to delay the trial. Motion **DENIED**.³

V. Conclusion and Order

For all the above reasons, the Court in the exercise of its discretion **DENIES** Plaintiff's Motion for leave to file a First Amended Complaint now.

SO ORDERED.

Date: July 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

³ In light of this ruling **DENYING** the Motion, the Court need not and does not address Defendants' other arguments raised in their Opposition brief.

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